

M/s Shri Balaji Enterprises & Anr. v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 17 August 2022 · Writ-C No. 18968 of 2022 · **Writ dismissed; petitioner relegated to Para 6.14 instalment remedy.**

HEADNOTE

A consumer seeking additional time to pay outstanding electricity dues and unsealing of premises must avail Paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The Allahabad High Court dismissed the mandamus petition, leaving that instalment remedy open.

FACTUAL SUMMARY

M/s Shri Balaji Enterprises and another filed a writ petition seeking a mandamus directing the respondents to grant additional time to pay outstanding dues and to unseal their premises. Counsel for respondent No. 5, the distribution licensee, stated that the petitioners had a remedy under Paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The Division Bench heard counsel for the petitioners, the State, and the licensee, and decided the petition on that objection without examining the demand or sealing on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility as alternate remedy

HOLDING

A writ of mandamus seeking additional time to pay outstanding electricity dues and unsealing of the consumer's premises does not lie where Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 affords the instalment remedy; the petition is dismissed leaving that Code remedy open. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated Paragraph 6.14 as the proper Code remedy for a consumer seeking additional time to pay outstanding dues, and dismissed the writ leaving that instalment clause to be availed. ¶ 1

instalment-facility-clause-6.14-for-financial-distress The prayer for extra time to pay outstanding dues and to unseal the premises was treated as a Paragraph 6.14 instalment-facility matter, not a subject for writ mandamus. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS OR ADDITIONAL TIME SHOULD BE GRANTED UNDER PARAGRAPH 6.14

Left open to the petitioner to avail the Code remedy. ¶ 1

NOT DECIDED — WHETHER THE PREMISES SHOULD BE UNSEALED

Not examined on merits. ¶ 1